

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mic Braun	Team: Squad #05	CCRB Case #: 202206358	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/21/2022 4:09 PM	Location of Incident: 5517 Broadway	18 Mo. SOL 3/21/2024	Precinct: 50		
Date/Time CV Reported Thu, 09/22/2022 11:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/22/2022 11:00 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Ramon Maldonado	10534	937011	TD 3
2. PO Seydou Keita	22921	962518	TD 3

Officer(s)	Allegation	Investigator Recommendation
A. PO Ramon Maldonado	Abuse: Police Officer Ramon Maldonado stopped § 87(2)(b)	
B. PO Seydou Keita	Abuse: Police Officer Seydou Keita stopped § 87(2)(b)	
C. PO Ramon Maldonado	Abuse: Police Officer Ramon Maldonado threatened to arrest § 87(2)(b)	
D. PO Seydou Keita	Discourtesy: Police Officer Seydou Keita spoke discourteously to § 87(2)(b)	
E. PO Seydou Keita	Abuse: Police Officer Seydou Keita refused to provide his name to § 87(2)(b)	
F. PO Seydou Keita	Abuse: Police Officer Seydou Keita refused to provide his shield number to § 87(2)(b)	
G. PO Ramon Maldonado	Abuse: Police Officer Ramon Maldonado refused to provide his shield number to § 87(2)(b)	
H. PO Ramon Maldonado	Abuse: Police Officer Ramon Maldonado obstructed his shield number.	
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		
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§ 87(4-b) § 87(2)(g)		

Case Summary

On September 22, 2022, § 87(2)(b) filed this complaint over the phone with the CCRB.

On September 21, 2022, at approximately 4:09 p.m., § 87(2)(b) jumped the turnstile at the 231st Street “1” train subway station in the Bronx. PO Ramon Maldonado and PO Seydou Keita of Transit District 3 attempted to issue him a summons, but he left the station. PO Maldonado and PO Keita followed § 87(2)(b) to 5517 Broadway in the Bronx and stopped him on the street (**Allegations A-B: Abuse of Authority, § 87(2)(g)**). PO Maldonado issued § 87(2)(b) a summons for § 87(2)(b) (**BR 01**). PO Maldonado threatened to arrest § 87(2)(b) if he did not provide ID (**Allegation C: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) told PO Keita to suck his dick, and PO Keita replied, “You have one? I didn’t know you have one” (**Allegation D: Discourtesy, § 87(2)(g)**). § 87(2)(b) requested PO Keita’s name and shield number, which he allegedly refused to provide (**Allegations E-F: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) requested PO Maldonado’s shield number, which he allegedly refused to provide (**Allegation G: Abuse of Authority, § 87(2)(g)**). PO Maldonado allegedly obstructed his shield number (**Allegation H: Abuse of Authority, § 87(2)(g)**).
§ 87(4-b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

The investigation obtained BWC footage (**BR 02-03, summarized in BR 04**), cellphone footage from § 87(2)(b) (**BR 05, summarized in BR 06**), and MTA CCTV footage (**BR 07, summarized in BR 08**). All references to video refer to the timestamp in the video player and not to the on-screen timestamp.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ramon Maldonado stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Seydou Keita stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Ramon Maldonado threatened to arrest

§ 87(2)(b)

MTA CCTV footage (**BR 07, file #23, at 03:12**) captures § 87(2)(b) jumping the turnstiles. PO Maldonado and PO Keita approach, and PO Keita gestures for § 87(2)(b) to leave. Additional footage (**BR 07, file #28, at 04:38**) captures § 87(2)(b) exiting the station and going down the stairs. PO Maldonado and PO Keita go down the stairs in pursuit within 30 seconds. PO Maldonado’s BWC (**BR 03, at 00:26**) captures PO Keita motioning for § 87(2)(b) to stop on the street. PO Maldonado tells § 87(2)(b) that he jumped the turnstile, and he asks § 87(2)(b) for identification. PO Maldonado tells § 87(2)(b) that the officers will put him in handcuffs if he does not provide identification. § 87(2)(b) does eventually provide it.

§ 87(2)(b) provided testimony in a formal interview (**BR 09**). He testified that he jumped the turnstile in front of PO Maldonado and PO Keita, who were swiping in other civilians. PO Keita told him that he should have asked to be swiped in. § 87(2)(b) answered that he could give him a ticket if he wants. PO Keita told him to get out of the train station. Both officers told § 87(2)(b) not to come back, but they did not tell him that he was ejected from the station, or that he would receive a summons. § 87(2)(b) left, and the officers followed him in their vehicle. PO Keita told him to provide his identification and § 87(2)(b) refused, saying that PO Keita did not need it. PO Keita responded, “Give me your ID or I’m gonna place you under arrest.” § 87(2)(b) handed over his identification. § 87(2)(b) asked the officers what was going on, and PO Maldonado told him that he was being issued a summons.

Though § 87(2)(b) alleged that PO Keita asked for identification, the BWC footage confirms that it was PO Maldonado.

PO Maldonado testified (**BR 10**) that he and PO Keita approached § 87(2)(b) in the subway station to ask him why he jumped the turnstile. PO Maldonado told § 87(2)(b) that he was being ejected for violating the MTA Rules and Regulations. He and PO Keita told § 87(2)(b) several times that he needed to leave, but he refused. He told § 87(2)(b) “Sir, if you don’t leave the station, we’re gonna issue you a summons.” As PO Maldonado got ready to write the summons, § 87(2)(b) suddenly turned around and left. The officers were initially going to let § 87(2)(b) go once he had left the station, but it looked like he was coming back up the stairs. The officers then followed him in their vehicle and caught up to him on the street. PO Maldonado explained that he would be issued a summons for jumping the turnstile and running away. He asked § 87(2)(b) for his ID several times, which he refused to provide. He told § 87(2)(b) that he would be put in handcuffs if he did not provide identification. He was not going to take § 87(2)(b) to the stationhouse, but he was going to handcuff him for safety until the officers could identify him.

PO Keita testified (**BR 11**) that he intended to issue a summons when he and PO Maldonado approached § 87(2)(b) after he jumped the turnstile. § 87(2)(b) argued with the officers and walked out of the station while they were speaking to him. He was not told to leave, and he was not being ejected. He did not turn around to come back up the stairs. The street stop was a continuation of the incident by the subway station.

No person shall, for purposes of gaining entry into a facility, proceed over any turnstile at which a fare is required or collected. Any police officer shall be empowered to issue a notice of violation for violation of any of these rules. NYC Transit Rules of Conduct and Fines, §1050.4(a) and §1050.12 (**BR 12**). According to Patrol Guide Procedure 209-39, officers may issue a Transit Adjudication Bureau Notice of Violation (TAB/NOV) in lieu of arrest for civilians committing one or more violations of the New York City Transit Rules of Conduct (**BR 13**).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (D) Discourtesy: Police Officer Seydou Keita spoke discourteously to § 87(2)(b)

[REDACTED]

PO Maldonado’s BWC (**BR 03, at 04:00**) captures § 87(2)(b) telling the officers that he can tell them whatever he wants, including to “suck [his] dick.” He repeatedly says, “Suck my dick.” PO Keita answers, “You have one? I didn’t know you have one.”

§ 87(2)(b) did not allege that PO Keita made any discourteous remarks toward him.

PO Keita's testimony was generally consistent with the BWC. He did not know why § 87(2)(b) had told him to "suck [his] dick," so his response was automatic. It had no meaning. He was not making a statement about § 87(2)(b) body or gender. When asked if he was asking if § 87(2)(b) had a penis, PO Keita ultimately answered, "Maybe."

§ 87(2)(g)

Officers pledge to maintain a higher standard of integrity than is generally expected of others, and to respect the dignity of each individual and render their services with courtesy and civility. Patrol Guide Procedure 200-02 (BR 14). Discourteous language may be excusable when an officer is speaking in the context of a dynamic situation over which he is still attempting to gain control. However, discourteous statements are prohibited when they serve no legitimate purpose but to belittle the civilian. DAO-DCT Case Number 2015-15012 (BR 15).

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Seydou Keita refused to provide his name to

§ 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Seydou Keita refused to provide his shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Ramon Maldonado refused to provide his shield number to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Ramon Maldonado obstructed his shield number.

§ 87(2)(b) testified that he requested PO Keita's name and shield number, and PO Keita told him the information was on his badge. § 87(2)(b) then requested PO Maldonado's shield number, which was covered by a black elastic band. § 87(2)(b) asked PO Maldonado to uncover his shield number. PO Maldonado only "somewhat" removed his mourning band after being asked, and § 87(2)(b) could not see the numbers on his shield. PO Maldonado said that his shield number was on his shield. He did not verbally provide his shield number or show his shield to § 87(2)(b)

§ 87(2)(b) cellphone video (BR 05, at 02:19) confirms that PO Keita pointed at and displayed his shield and nameplate in response to § 87(2)(b) request for his name and shield number. § 87(2)(b) holds his cellphone very close to PO Keita's chest and captures a clear view of his nameplate and shield. It has a mourning band, but the name and shield number are fully visible. § 87(2)(b) asks, "What's your name?" PO Keita answers that his name is right there, and points to his shield. § 87(2)(b) then asks, "What's your badge number?" and PO Keita again points to his shield and makes clear that everything is written on it. § 87(2)(b) then pans his camera towards PO Maldonado and asks, "And what's your badge number?" PO Maldonado's shield number is partially obscured by a mourning band. PO Maldonado looks down at his shield. § 87(2)(b) tells him not to cover it, and PO Maldonado moves the mourning band so that it is no longer obstructing any part of the shield number. He then also verbally provides his shield number and name to § 87(2)(b)

PO Maldonado testified that he and PO Keita had pointed to their jackets and brought out their shields so that § 87(2)(b) could have a better view. PO Maldonado initially testified that his mourning band never obstructed his shield or nametag. Upon viewing BWC, he testified that it might have slipped down when he was trying to move everything so that § 87(2)(b) could see his shield properly. PO Maldonado only noticed that the mourning band had slipped down when § 87(2)(b) requested his shield number. When asked whether he kept the mourning band above his shield number once he had lifted it for § 87(2)(b) PO Maldonado answered that he was not concerned at that point about his mourning band because he was concerned with his safety and with issuing a summons. PO Maldonado confirmed his understanding that the Patrol Guide states a mourning band cannot be worn in such a way that it obstructs the shield number or nameplate.

PO Keita's testimony was somewhat consistent with the cellphone footage. He testified that he did not verbally provide his shield number because it was "obviously visible." He pulled his vest down with his left hand to make his shield more visible and turned towards § 87(2)(b). He did not recall if § 87(2)(b) asked for his name, but it was visible on the shield. He never verbally provided his name, and he did not refuse to provide it.

§ 87(2)(g)

NYC Administrative Code § 14-187 requires that an officer's shield number must be visible while such officer is in uniform and performing any activity under the color of law, and that an officer must make the number visible to any civilian who requests it (**BR 21**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in three allegations (**BR 18**):
 - § 87(2)(b)
 -
- PO Keita has been a member of the NYPD for six years and this is the first CCRB complaint to which he has been a subject.
- PO Maldonado has been a member of the NYPD for 18 years and has been a subject in three CCRB complaints and six allegations, of which three were substantiated:
 - 201412603 involved substantiated allegations of abuse of authority (other-detained), refusal to provide name/shield number, and discourteous word against PO Maldonado. The Board recommended Charges. PO Maldonado was found not guilty at the APU and the NYPD imposed no discipline.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On February 27, 2023, the undersigned requested any Notice of Claim filed with the NYC Comptroller's office. The response will be added to this case upon receipt (**BR 19**).
- [§ 87(2)(b)] [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator:	<u>Mic Braun</u>	<u>Inv. Mic Braun</u>	<u>November 21, 2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>November 21, 2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date